

Hearing of Professor Pasquale Stanzone,
President of the Authority for the Protection of Personal Data,
on draft bills Nos. 1136, 1160, and 1166
(Protection of Minors in the Digital Sphere)
Senate of the Republic - 8th Commission (Environment,
Ecological Transition, Energy, Public Works,
Communications, Technological Innovation)
(10 July 2024)

- THE VIDEO OF THE HEARING

I thank the Commission for this opportunity to discuss a topic that is particularly dear to me and to the Authority that I have the honor of presiding over, namely the protection of minors in the digital realm. The draft bills address this issue from different perspectives, with partly common approaches and sometimes complementary solutions.

Starting from the common issues, they primarily concern the raising of the age threshold for digital consent (except for bill 1166) and procedures for age verification, specific measures for the removal of content related to minors, regulations on sharenting and baby influencers.

Regarding the age threshold for digital consent, with all the limitations of legal presumptions and reserving the political discretion inherent in this option, it may be useful to revisit the reasons for the choice made by the domestic legislator in 2018, in the context of aligning domestic legislation with the General Data Protection Regulation, (EU) 2016/679 (hereinafter: GDPR). Article 8 of the GDPR indeed authorizes Member States to set the age threshold for "digital consent" between 13 and 16 years.

The draft legislative decree for alignment with the GDPR, adopted in implementation of Article 13 of the European Delegation Law for 2017 (Law No. 163 of 2017), in the version disseminated following the first preliminary approval by the Council of Ministers, identified the age of fourteen years as the threshold at which a minor's consent to the processing of their personal data, in the context of the direct offering of information society services, should be considered valid.

In drafting the text of the decree sent to Parliament (AG 22), the legislator chose not to exercise the option granted to the national legislator to set an age lower than sixteen years for the provision of consent by the minor. However, reflecting the indications provided during the legislative inquiry on the text, in the final approval of the legislative decree, the Government subsequently identified 14 years as the preferable age threshold for this purpose (see Article 2-octies of Legislative Decree 196 of 2003 and subsequent amendments).

In favor of this choice, it was indeed recalled - also by the Authority - that the age of 14 represents an age at which the Italian legal system already recognizes the minor a partial capacity to act in certain areas.

Significantly, the law on cyberbullying (Law No. 71 of 2017) legitimizes minors over the age of fourteen to request, in their own name and on their own behalf, the removal of harmful content from the internet site where their personal data is published.

The law also recognizes minors of the same age the legitimacy to approach the Authority for the Protection of Personal Data to obtain the removal of harmful content, in cases of inaction or unidentifiability of the data controller. A similar option was then pursued by the legislator in 2021 regarding revenge porn, thereby legitimizing minors over the age of fourteen to submit requests to block the uploading of intimate content (Article 144-bis of Legislative Decree 196 of 2003, introduced by Article 9 of Law Decree 139 of 2021, converted with amendments by Law 205 of 2021).

At the same age, moreover, albeit in another branch of the legal system, Article 97 of the Penal Code links the term of absolute presumption of non-imputability of the minor. On the other hand, the minor over the age of fourteen has the right to give their consent to adoption (Article 7, paragraph 2, Law No. 184 of 1983). It would therefore seem inconsistent to allow a fourteen-year-old to give their consent to be adopted but not to use a social network.

It was also noted that it would be preferable to identify, for this purpose, an age that is at least close to and not excessively higher than the age at which, in fact, at that time (and even more so today, after the pandemic), young people access social networks or, in any case, information society services, so

as not to render the norm entirely ineffective due to being too far removed from social demands. The legislator will therefore evaluate, based on these considerations, the age threshold that it deems most suitable to reconcile the need to protect minors with the recognition of their, albeit partial, capacity for self-determination (and therefore discernment) in a dimension, such as the digital one, in which the predominant part of adolescents' lives is now inscribed. Certainly, adequate digital pedagogy must be guaranteed: a comprehensive education for minors in the use of the network, allowing them to experience the digital world responsibly. In this perspective, the regulations aimed at this goal, particularly those present in bills 1160 and 1166, as well as the specific emergency protection provided by Article 6 of bill 1136, are certainly commendable.

What is, however, indispensable, although not easy to guarantee – also in light of the experience gained by the Authority in recent years – is an effective system for verifying the user's age, which combines the need for actual control with the need to avoid mass "registration," especially of minors.

To this end – in order not to crystallize technical solutions in legislative choices, which are inevitably subject to change over time – it is advisable to delegate the detailed regulation to sources characterized by the necessary flexibility, such as the measures of Agcom identified by bills 1136 and 1160, following the model already outlined by the "Caivano decree" (Decree-Law 123 of 2023), which is currently being implemented, with the opinion of the Authority on the draft measure. The difference between the solutions proposed by the two bills in this regard essentially concerns the limitation, provided for in bill 1136, of the obligation to verify age to only those platforms that record a number of unique monthly accesses exceeding that established by the aforementioned Agcom measure. The modulation of obligations based on the significance of the platform is already inherent in Union legislation (especially the Digital Services Act), but its coherence with the need pursued by this bill to raise the age for autonomous access to the network, for a strengthened protection of minors online, must be evaluated. This is also in relation to the general obligation of online protection of minors provided for in Article 28 of the Digital Services Act, which applies indiscriminately to platforms solely based on their accessibility to minors.

In relation to this bill, there is also a need for greater coordination between the proposed repeal of Article 2-quinquies, paragraph 1, of Legislative Decree 196 of 2003 (which governs the legitimization of minors over 14 to autonomously provide consent for the processing of their personal data in relation to the offering of information society services and the provision, for those under 14, of consent by those exercising parental responsibility) and the provision of Article 3. This, in fact, concerns a somewhat different issue, namely the age threshold for the valid conclusion of contracts with providers of information society services, with the consequent legitimacy of processing only the personal data necessary for the execution of the contract.

Therefore, there is no coincidence, regarding the legitimacy of processing, between the subject of the repeal (which concerns the consent, which is always revocable, of the over-fourteen) and the subject of the new regulation, which concerns the contractual necessity and thus does not fully encompass the issues related to the regulation of the minor's capacity for self-determination online. Where, therefore, the legislator intends to raise the age threshold for consent, it would be preferable to operate directly on Article 2-quinquies of Legislative Decree 196 of 2003, as for example provided by bill 1160.

As for the regulation of the dissemination of content related to minors, the provision, for example, in Article 2, paragraph 4, of bill 1160, legitimizing the minor over fourteen to autonomously exercise the right to be forgotten (preferably without reference to Article 17 of the GDPR), is certainly commendable, even with special procedures such as that referred to in Article 2 of the law on cyberbullying and also concerning content disseminated by parents or with their consent. However, this special legitimization of the over-fourteen is somewhat inconsistent with the raising to 16 years, carried out by Article 4 of the same bill, of the age threshold for digital consent and the consequent attribution to those exercising parental responsibility of the legitimization to provide consent for the processing of the data of the under-sixteen minor (Article 2-quinquies, paragraph 1, second sentence, Legislative Decree 196 of 2003 as amended by Article 4 of bill 1160). It is therefore appropriate that these provisions be harmonized so as not to create antinomies on the matter.

Regarding Article 2 of bill 1160, the provision in paragraph 3 concerning "sharenting" is nonetheless appropriate, which positivizes the prevailing jurisprudential direction on the nature of extraordinary administration of the act of consent to the disposition of the minor's image and the consequent necessary joint exercise by the parents, involving the child. However, it would be appropriate to clarify whether such parental intervention is also necessary for the publication of images by the minor themselves (for example, on their social account) or constitutes, instead, a prerequisite for the legitimacy of the act of disposition of the minor's image by third parties.

The "positivization" of the principles of the Treviso Charter, which confers upon them the value and force of law, is also commendable.

The regulations on the employment of minors within digital platforms (although the various bills differ on the identification of the authority)

competent for the issuance of authorizations) are certainly shareable, as they extend protections and limits provided by labor law to an increasingly frequent situation. It is also appropriate to foresee the obligation to remove content disseminated in the absence of the requested authorization. However, the sanction for non-compliance with this obligation should more correctly be aligned with the sanctioning system established by the GDPR and by Legislative Decree 196 of 2003, due to the identity of the legal interest protected.

In conclusion, therefore, the matter of the protection of minors online and, in particular, the exploitation of their image and sharenting, undoubtedly deserves the introduction of specific regulations, which in the draft laws are – despite the noted needs for systematic coordination of the texts – correctly outlined.

Thank you.